

GINSBURG, J., dissenting

Although the members of the Wisconsin Elections Commission did not challenge the preliminary injunction, the intervening defendants applied to the Seventh Circuit for a partial stay. Of the twofold remedy just described, the stay applicants challenged only the second aspect, the extension of the deadline for returning absentee ballots. On April 3, the Seventh Circuit declined to modify the absentee-ballot deadline. The same applicants then sought a partial stay in this Court, which the Court today grants.

II

A

The Court's order requires absentee voters to postmark their ballots by election day, April 7—*i. e.*, tomorrow—even if they did not receive their ballots by that date. That is a novel requirement. Recall that absentee ballots were originally due back to election officials on April 7, which the District Court extended to April 13. Neither of those deadlines carried a postmark-by requirement.

While I do not doubt the good faith of my colleagues, the Court's order, I fear, will result in massive disenfranchisement. A voter cannot deliver for postmarking a ballot she has not received. Yet tens of thousands of voters who timely requested ballots are unlikely to receive them by April 7, the Court's postmark deadline. Rising concern about the COVID-19 pandemic has caused a late surge in absentee-ballot requests. 451 F. Supp. 3d, at 961-962. The Court's suggestion that the current situation is not "substantially different" from "an ordinary election" boggles the mind. *Ante*, at 425. Some 150,000 requests for absentee ballots have been processed since Thursday, state records indicate.² The surge in absentee-

²See Wisconsin Elections Commission, Absentee Ballot Report, Apr. 2, 2020, <https://elections.wi.gov/node/6806>; Wisconsin Elections Commission, Absentee Ballot Report, Apr. 3, 2020, <https://elections.wi.gov/node/6808>; Wisconsin Elections Commission, Absentee Ballot Report, Apr. 4, 2020,

ballot requests has overwhelmed election officials, who face a huge backlog in sending ballots. 451 F. Supp. 3d, at 957, 961–962, 967, 976–977. As of Sunday morning, 12,000 ballots reportedly had not yet been mailed out.³ It takes days for a mailed ballot to reach its recipient—the postal service recommends budgeting a week—even without accounting for pandemic-induced mail delays. *Id.*, at 962. It is therefore likely that ballots mailed in recent days will not reach voters by tomorrow; for ballots not yet mailed, late arrival is all but certain.⁴ Under the District Court’s order, an absentee voter who receives a ballot after tomorrow could still have voted, as long as she delivered it to election officials by April 13. Now, under this Court’s order, tens of thousands of absentee voters, unlikely to receive their ballots in time to cast them, will be left quite literally without a vote.

This Court’s intervention is thus ill advised, especially so at this late hour. See *Purcell v. Gonzalez*, 549 U. S. 1, 4–5 (2006) (*per curiam*). Election officials have spent the past few days establishing procedures and informing voters in accordance with the District Court’s deadline. For this Court

<https://elections.wi.gov/node/6814>; Wisconsin Elections Commission, Absentee Ballot Report, Apr. 5, 2020, <https://elections.wi.gov/node/6815>.

³See Wisconsin Elections Commission, Absentee Ballot Report, Apr. 5, 2020, <https://elections.wi.gov/index.php/node/6815>.

⁴See, *e.g.*, Tr. 18–19 (Apr. 1, 2020) (testimony that mail delivery “can take up to a week” or longer, threatening “the opportunity for the voter to receive [the absentee] ballot by mail”); *id.*, at 36 (testimony that the “transaction time from the time the clerk puts [an absentee ballot] in the mail to the voter receiving it could take up to a week”); *id.*, at 40 (testimony agreeing that “there will be some people who request . . . [an] absentee ballot [on April 2] who will not be receiving it in time to put it in the mail by April 7th”); Brief for City of Green Bay as *Amicus Curiae* in No. 3:20-cv-00249 (WD Wis.), p. 5 (“[D]elays at the post office are . . . affecting the speed with which voters receive their ballots . . .”).

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to upend the process—a day before the April 7 postmark deadline—is sure to confound election officials and voters.

B

What concerns could justify consequences so grave? The Court’s order first suggests a problem of forfeiture, noting that the plaintiffs’ written preliminary-injunction motions did not ask that ballots postmarked after April 7 be counted. But unheeded by the Court, although initially silent, the plaintiffs specifically requested that remedy at the preliminary-injunction hearing in view of the ever-increasing demand for absentee ballots. See Tr. 102–103 (Apr. 1, 2020).

Second, the Court’s order cites *Purcell*, apparently skeptical of the District Court’s intervention shortly before an election. Nevermind that the District Court was reacting to a grave, rapidly developing public health crisis. If proximity to the election counseled hesitation when the District Court acted several days ago, this Court’s intervention today—even closer to the election—is all the more inappropriate.

Third, the Court notes that the District Court’s order allowed absentee voters to cast ballots after election day. If a voter already in line by the poll’s closing time can still vote, why should Wisconsin’s absentee voters, already in line to receive ballots, be denied the franchise? According to the stay applicants, election-distorting gamesmanship might occur if ballots could be cast after initial results are published. But obviating that harm, the District Court enjoined the publication of election results before April 13, the deadline for returning absentee ballots, and the Wisconsin Elections Commission directed election officials not to publish results before that date.⁵

⁵ Memorandum from M. Wolfe, Administrator of the Wisconsin Elections Commission, to Wisconsin Municipal Clerks et al. (Apr. 3, 2020), <https://elections.wi.gov/sites/elections.wi.gov/files/2020-04/Clerk%20comm%20re.%20court%20decisions%204.3.pdf>.

The concerns advanced by the Court and the applicants pale in comparison to the risk that tens of thousands of voters will be disenfranchised. Ensuring an opportunity for the people of Wisconsin to exercise their votes should be our paramount concern.

* * *

The majority of this Court declares that this case presents a “narrow, technical question.” *Ante*, at 423. That is wrong. The question here is whether tens of thousands of Wisconsin citizens can vote safely in the midst of a pandemic. Under the District Court’s order, they would be able to do so. Even if they receive their absentee ballot in the days immediately following election day, they could return it. With the majority’s stay in place, that will not be possible. Either they will have to brave the polls, endangering their own and others’ safety. Or they will lose their right to vote, through no fault of their own. That is a matter of utmost importance—to the constitutional rights of Wisconsin’s citizens, the integrity of the State’s election process, and in this most extraordinary time, the health of the Nation.

REPORTER'S NOTE

Orders commencing with February 26, 2020, begin with page 1248. The preceding orders in 589 U. S., from October 7, 2019, through February 24, 2020, were reported in Part 1, at 901–1247. These page numbers are the same as they will be in the bound volume, thus making the *permanent* citations available upon publication of the preliminary prints of the United States Reports.

February 26, March 2, 2020

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FEBRUARY 26, 2020

Dismissal Under Rule 46

No. 18–217. *MATHENA, WARDEN v. MALVO*. C. A. 4th Cir. [Certiorari granted, 586 U.S. 1221.*] Writ of certiorari dismissed under this Court’s Rule 46.1.

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Certiorari Granted—Vacated and Remanded

No. 18–309. *SWARTZ v. RODRIGUEZ, INDIVIDUALLY AND AS THE SURVIVING MOTHER AND PERSONAL REPRESENTATIVE OF*

*[REPORTER’S NOTE: Argued October 16, 2019. *Toby J. Heytens*, Solicitor General of Virginia, argued the cause for petitioner. With him on the briefs were *Mark R. Herring*, Attorney General, *Victoria N. Pearson*, Deputy Attorney General, *Matthew R. McGuire*, Principal Deputy Solicitor General, *Donald E. Jeffrey III*, Senior Assistant Attorney General, and *Michelle S. Kallen*, Deputy Solicitor General.

Eric J. Feigin argued the cause for the United States as *amicus curiae* urging vacatur. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Frederick Liu*, and *Robert A. Parker*.

Danielle Spinelli argued the cause for respondent. With her on the brief were *Catherine M. A. Carroll*, *Kevin M. Lamb*, *Janet R. Carter*, and *Craig S. Cooley*.

Briefs of *amici curiae* urging reversal were filed for the State of Indiana et al. by *Curtis T. Hill, Jr.*, Attorney General of Indiana, *Thomas M. Fisher*, Solicitor General, *Kian J. Hudson* and *Julia C. Payne*, Deputy Attorneys General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Leslie Rutledge* of Arkansas, *Ashley Moody* of Florida, *Christopher M. Carr* of Georgia, *Lawrence G. Wasden* of Idaho, *Jeff Landry* of Louisiana, *Timothy C. Fox* of Montana, *Douglas J. Peterson* of Nebraska, *Alan Wilson* of South Carolina, *Jason R. Ravnsborg* of South Dakota, *Herbert H. Slatery III* of Tennessee, *Ken Paxton* of Texas, *Sean Reyes* of Utah, and *Bridget Hill* of Wyoming; for the Criminal Justice Legal Foundation by *Kent S. Scheidegger* and *Kymberlee C. Stapleton*; for the Maryland Crime Victims’ Resource Center, Inc., by *Russell P. Butler* and *Victor D. Stone*; and for Jonathan F. Mitchell et al. by *Taylor A. R. Meehan*.

Briefs of *amici curiae* urging affirmance were filed for the American Bar Association by *Judy Perry Martinez*, *Christopher M. Murphy*, and *Lawrence A. Wojcik*; for Current and Former Prosecutors et al. by *Mary B. McCord* and *Annie L. Owens*; for the Juvenile Law Center et al. by *Marsha L. Levick*, *Riya Saha Shah*, *Heather Renwick*, and *Rebecca Turner*; for David I. Bruck et al. by *Ashley C. Parrish*; for Erwin Chemerinsky et al. by *John Mills*, *Larry Yackle*, *David D. Cole*, *Deborah A. Jeon*, and *Sonia Kumar*; for Isa Nichols et al. by *Angela C. Vigil*; and for Former W. Va. Delegate John Ellem et al. by *Mr. Ellem, pro se*, *V. Lowry Snow*, *James L. Dodd*, and *Suzanne S. La Pierre*.]

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J. A. C. A. 9th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Hernández v. Mesa*, 589 U. S. 93 (2020). Reported below: 899 F. 3d 719.

No. 18–9164. MURO *v.* UNITED STATES. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Holguin-Hernandez v. United States*, 589 U. S. 169 (2020). Reported below: 765 Fed. Appx. 57.

No. 19–5601. HICKS *v.* UNITED STATES. C. A. 5th Cir. Reported below: 770 Fed. Appx. 215; and

No. 19–5789. McMILLAN *v.* UNITED STATES. C. A. 3d Cir. Reported below: 774 Fed. Appx. 768. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019).

Certiorari Granted—Vacated

No. 19–675. BANK OF AMERICA CORP. ET AL. *v.* CITY OF MIAMI, FLORIDA; and

No. 19–688. WELLS FARGO & CO. ET AL. *v.* CITY OF MIAMI, FLORIDA. C. A. 11th Cir. Certiorari granted and judgment of the Court of Appeals vacated as moot. See *United States v. Munsingwear*, 340 U. S. 36, 39–40 (1950). Reported below: 923 F. 3d 1260.

Certiorari Dismissed

No. 19–7122. RAGHUBIR *v.* INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. Dist. Ct. App. Fla., 1st Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

No. 19–7186. YOUNG *v.* UNITED STATES ET AL. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8. As petitioner has repeatedly abused this Court’s process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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No. 19–7189. *MOORE v. UNITED STATES*. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8. Reported below: 772 Fed. Appx. 235.

Miscellaneous Orders

No. 19A748. *GOAD v. STEEL, JUDGE, ET AL.* 274th Jud. Dist. Ct. Tex., Comal County. Application for stay, addressed to JUSTICE GINSBURG and referred to the Court, denied.

No. 19M103. *ELAM ET VIR v. AURORA LOAN SERVICES, LLC, ET AL.*; and

No. 19M106. *TORRES v. CONTINENTAL APARTMENTS ET AL.* Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 19M104. *HAIRSTON v. DEPARTMENT OF VETERANS AFFAIRS*. Motion for leave to proceed as a veteran denied.

No. 19M105. *MILLER v. UNITED STATES*. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 18–540. *RUTLEDGE, ATTORNEY GENERAL OF ARKANSAS v. PHARMACEUTICAL CARE MANAGEMENT ASSN.* C. A. 8th Cir. [Certiorari granted, 589 U.S. 1127.] Motion of petitioner for leave to file volume II of the joint appendix under seal granted.

No. 18–956. *GOOGLE LLC v. ORACLE AMERICA, INC.* C. A. Fed. Cir. [Certiorari granted, 589 U.S. 1066.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 19–465. *CHIAFALO ET AL. v. WASHINGTON*. Sup. Ct. Wash.; and

No. 19–518. *COLORADO DEPARTMENT OF STATE v. BACA ET AL.* C. A. 10th Cir. [Certiorari granted, 589 U.S. 1165.] Motion of petitioners in No. 19–465 to dispense with printing joint appendix granted.

No. 19–7073. *THOMAS v. KENMARK VENTURES, LLC*. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until March 23, 2020, within which to pay the docketing fee required by Rule 38(a) and to

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submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 19–7564. IN RE SEIBERT; and

No. 19–7643. IN RE LEONARD. Petitions for writs of habeas corpus denied.

No. 19–7143. IN RE McDONALD. Petition for writ of mandamus denied.

No. 19–7435. IN RE BROOKS. Petition for writ of mandamus and/or prohibition denied.

Certiorari Granted

No. 19–547. UNITED STATES FISH AND WILDLIFE SERVICE ET AL. *v.* SIERRA CLUB, INC. C. A. 9th Cir. Certiorari granted. Reported below: 925 F. 3d 1000.

No. 19–840. CALIFORNIA ET AL. *v.* TEXAS ET AL.; and

No. 19–1019. TEXAS ET AL. *v.* CALIFORNIA ET AL. C. A. 5th Cir. Motion of 33 State Hospital Associations for leave to file brief as *amici curiae* in No. 19–840 granted. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: 945 F. 3d 355.

No. 19–5410. BORDEN *v.* UNITED STATES. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted limited to Question 1 presented by the petition. Reported below: 769 Fed. Appx. 266.

Certiorari Denied

No. 18–7105. HUNTER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 811.

No. 18–7797. PATRICK *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 797.

No. 18–8380. PRESSEY *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 18–8447. WILSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 930.

No. 18–9547. WILLIAMS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 18–9772. *HOWARD v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 767 Fed. Appx. 779.

No. 18–9796. *JIMERSON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 950.

No. 19–28. *DANIELS v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 915 F. 3d 148.

No. 19–229. *C. D., BY AND THROUGH HER PARENTS, M. D. ET AL., ET AL. v. NATICK PUBLIC SCHOOL DISTRICT ET AL.* C. A. 1st Cir. Certiorari denied. Reported below: 924 F. 3d 621.

No. 19–550. *WATSO ET AL. v. HARPSTEAD, COMMISSIONER, MINNESOTA DEPARTMENT OF HUMAN SERVICES, ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 929 F. 3d 1024.

No. 19–572. *SINGH v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 924 F. 3d 1030.

No. 19–592. *COUNTY COMMISSIONERS OF CARROLL COUNTY, MARYLAND v. MARYLAND DEPARTMENT OF THE ENVIRONMENT*. Ct. App. Md. Certiorari denied. Reported below: 465 Md. 169, 214 A. 3d 61.

No. 19–689. *CHAPMAN ET AL. v. ACE AMERICAN INSURANCE Co.* C. A. 11th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 556.

No. 19–714. *PENNSYLVANIA v. LANDIS*. Super. Ct. Pa. Certiorari denied. Reported below: 201 A. 3d 768.

No. 19–806. *BARTH v. TOWNSHIP OF BERNARDS, NEW JERSEY, ET AL.* Super. Ct. N. J., App. Div. Certiorari denied.

No. 19–808. *LEIBUNDGUTH STORAGE & VAN SERVICE, INC. v. VILLAGE OF DOWNERS GROVE, ILLINOIS*. C. A. 7th Cir. Certiorari denied. Reported below: 939 F. 3d 859.

No. 19–810. *BADWAL v. BADWAL ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 756 Fed. Appx. 101.

No. 19–817. *SHANDS v. LAKELAND CENTRAL SCHOOL DISTRICT ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 771 Fed. Appx. 121.

No. 19–821. *NSEJJERE v. SMITH ET UX*. Ct. App. Wash. Certiorari denied. Reported below: 8 Wash. App. 2d 1044.

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No. 19–853. *SANDRA R. ET AL. v. ARIZONA DEPARTMENT OF CHILD SAFETY*. Ct. App. Ariz. Certiorari denied. Reported below: 246 Ariz. 180, 436 P. 3d 503.

No. 19–866. *UBINAS-BRACHE v. SURGERY CENTER OF TEXAS, LP*. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 19–898. *COLLINS v. THORNTON*. C. A. 4th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 264.

No. 19–927. *KLOCKE, INDEPENDENT ADMINISTRATOR OF THE ESTATE OF KLOCKE v. UNIVERSITY OF TEXAS AT ARLINGTON*. C. A. 5th Cir. Certiorari denied. Reported below: 938 F. 3d 204.

No. 19–928. *JOHNSON v. DARNELL, SHERIFF, ALACHUA COUNTY, FLORIDA, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 961.

No. 19–929. *SHUMAN ET UX. v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 813.

No. 19–942. *ZUCKERMAN, AS ANCILLARY ADMINISTRATRIX OF THE ESTATE OF LEFFMANN v. METROPOLITAN MUSEUM OF ART*. C. A. 2d Cir. Certiorari denied. Reported below: 928 F. 3d 186.

No. 19–944. *SELDIN v. SELDIN ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 182.

No. 19–952. *GOODWIN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 196.

No. 19–954. *HARRISS v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 9th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 425.

No. 19–965. *EDWARDS v. ATTERBERRY ET AL.* Sup. Ct. Ill. Certiorari denied.

No. 19–969. *MARSHALL ET AL. v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 9th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 565.

No. 19–973. *SWANSON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–5037. *VILLANUEVA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

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No. 19–5247. *HEDLUND v. ARIZONA*. Sup. Ct. Ariz. Certiorari denied. Reported below: 245 Ariz. 467, 431 P. 3d 181.

No. 19–5309. *MITCHELL v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 103.

No. 19–5478. *MADRIGAL v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 553.

No. 19–5480. *DORSEY v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–5575. *YARBROUGH v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 214.

No. 19–5923. *HAYES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 779 Fed. Appx. 574.

No. 19–6078. *MCDANIEL v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 925 F. 3d 381.

No. 19–6148. *WILSON v. GRIMES ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 218.

No. 19–6213. *BOOKER v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–6230. *FINCHER v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 929 F. 3d 501.

No. 19–6249. *FAIRCLOTH v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 976.

No. 19–6405. *VEREEN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 920 F. 3d 1300.

No. 19–6426. *RAMIREZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 110.

No. 19–6596. *HETTINGA v. LOUMENA*. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 19–6675. *BISHOP v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 940 F. 3d 1242.

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No. 19–6773. *ORTEGA-LIMONES v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 222.

No. 19–6910. *MOLIERE v. TEXAS*. Ct. App. Tex., 14th Dist. Certiorari denied. Reported below: 574 S. W. 3d 21.

No. 19–7064. *BEANBLOSSOM v. BAY DISTRICT SCHOOLS*. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 265 So. 3d 657.

No. 19–7091. *CHAMPAGNE v. ARIZONA*. Sup. Ct. Ariz. Certiorari denied. Reported below: 247 Ariz. 116, 447 P. 3d 297.

No. 19–7095. *SMITH v. UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 184.

No. 19–7101. *NOWAKOWSKI v. E. E. AUSTIN & SON, INC., ET AL.* Sup. Ct. Pa. Certiorari denied.

No. 19–7108. *MOORE v. LEGRAND, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–7110. *JOHNSON v. MCMAHON, CHIEF JUDGE, UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF NEW YORK, ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–7111. *JOHNSON v. PORTNOY ET AL.* C. A. 5th Cir. Certiorari denied.

No. 19–7120. *SANCHEZ v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–7124. *BUTLER v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied.

No. 19–7129. *MOORE v. NEW JERSEY*. Super. Ct. N. J., App. Div. Certiorari denied.

No. 19–7135. *HYE-YOUNG PARK v. SECOLSKY ET AL.* C. A. 7th Cir. Certiorari denied.

No. 19–7140. *MEDRANO ORTIZ v. SOLOMON ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 236.

No. 19–7150. *WALTON v. KOWALSKI, WARDEN*. C. A. 6th Cir. Certiorari denied.

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No. 19–7157. *MOTHER v. LORAIN COUNTY CHILDREN SERVICES*. Ct. App. Ohio, 9th App. Dist., Lorain County. Certiorari denied. Reported below: 2019-Ohio-1152.

No. 19–7158. *MONTANEZ v. MCDEAN, LLC*. C. A. 2d Cir. Certiorari denied. Reported below: 770 Fed. Appx. 592.

No. 19–7160. *ESPINOZA v. ASHE ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–7162. *JUAN NEGRON v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–7166. *KARNOFEL v. SUPERIOR WATERPROOFING, INC.* Ct. App. Ohio, 11th App. Dist., Trumbull County. Certiorari denied. Reported below: 2019-Ohio-1409.

No. 19–7168. *JOHNSON v. ILLINOIS*. App. Ct. Ill., 3d Dist. Certiorari denied. Reported below: 2019 IL App (3d) 170074–U.

No. 19–7181. *BELL v. OREGON HEALTH & SCIENCE UNIVERSITY*. Sup. Ct. Ore. Certiorari denied.

No. 19–7184. *BREWER v. CUNNINGHAM, SUPERINTENDENT, FISHKILL CORRECTIONAL FACILITY*. C. A. 2d Cir. Certiorari denied.

No. 19–7241. *COX v. LOUISIANA*. Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2018–0769 (La. App. 1 Cir. 2/22/19), 272 So. 3d 597.

No. 19–7277. *MOREIRA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–7284. *WALLACE v. VANNOY, WARDEN*. C. A. 5th Cir. Certiorari denied.

No. 19–7297. *BURTON v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Va. Certiorari denied.

No. 19–7329. *WILLIAMS v. GENTRY, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 616.

No. 19–7357. *FORDHAM v. MANZOLA ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 199.

No. 19–7372. *TAYLOR v. DISTRICT OF COLUMBIA*. Ct. App. D. C. Certiorari denied.

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No. 19–7376. *TRAPPLER v. NEW YORK*. App. Div., Sup. Ct. N. Y., 3d Jud. Dept. Certiorari denied. Reported below: 173 App. Div. 3d 1334, 102 N. Y. S. 3d 756.

No. 19–7399. *HARRIS v. UNITED STATES*. C. A. Fed. Cir. Certiorari denied.

No. 19–7427. *PEREZ-JIMENEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 381.

No. 19–7437. *SPARKS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 941 F. 3d 748.

No. 19–7446. *ECHEVERRIA-BENITEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 375.

No. 19–7450. *STEELE v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 423.

No. 19–7454. *BARFIELD v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 941 F. 3d 757.

No. 19–7457. *VILLARREAL-ESTEBIS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 329.

No. 19–7460. *WRIGHT v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 937 F. 3d 8.

No. 19–7467. *BEQIRAJ v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 788 Fed. Appx. 73.

No. 19–7477. *MEJIA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 644.

No. 19–7478. *PYE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 808.

No. 19–7490. *ERNESTO HERNANDEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 525.

No. 19–7492. *JENSEN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 800.

No. 19–7494. *THOMAS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 518.

No. 19–7498. *SANDERS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

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No. 19–7502. *PETERS v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 19–7507. *GURULE v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 935 F. 3d 878.

No. 19–7510. *BLOCK v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–7512. *URIAS-MARQUEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 406.

No. 19–7514. *ESSIEN v. PEERY, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 776.

No. 19–7518. *REYES GARCIA ET AL. v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 567.

No. 19–7519. *HERNANDEZ-NUNEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 633.

No. 19–7522. *MATTHEWS v. LOUISIANA*. Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2018–1107 (La. App. 1 Cir. 2/25/19).

No. 19–7540. *JACKSON v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. C. A. 11th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 774.

No. 18–7833. *HAYES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 19–296. *GUEDES ET AL. v. BUREAU OF ALCOHOL, TOBACCO, FIREARMS AND EXPLOSIVES, ET AL.* C. A. D. C. Cir. Certiorari denied. Reported below: 920 F. 3d 1.

Statement of JUSTICE GORSUCH respecting the denial of certiorari.

Does owning a bump stock expose a citizen to a decade in federal prison? For years, the government didn’t think so. But recently the Bureau of Alcohol, Tobacco, Firearms and Explosives changed its mind. Now, according to a new interpretive rule from the agency, owning a bump stock is forbidden by a longstanding federal statute that outlaws the “possession [of] a machine-gun.” 26 U. S. C. § 5685(b); 18 U. S. C. § 924(a)(2). Whether bump stocks can be fairly reclassified and effectively outlawed as machine-guns under existing statutory definitions, I do not know

and could not say without briefing and argument. Nor do I question that Congress might seek to enact new legislation directly regulating the use and possession of bump stocks. But at least one thing should be clear: Contrary to the court of appeals's decision in this case, *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837 (1984), has nothing to say about the proper interpretation of the law before us.

In the first place, the government expressly waived reliance on *Chevron*. The government told the court of appeals that, if the validity of its rule (re)interpreting the machinegun statute “turns on the applicability of *Chevron*, it would prefer that the [r]ule be set aside rather than upheld.” 920 F. 3d 1, 21 (CA DC 2019) (*per curiam*). Yet, despite this concession, the court proceeded to uphold the agency's new rule *only* on the strength of *Chevron* deference. Think about it this way. The executive branch and affected citizens asked the court to do what courts usually do in statutory interpretation disputes: supply its best independent judgment about what the law means. But, instead of deciding the case the old-fashioned way, the court placed an uninvited thumb on the scale in favor of the government.

That was mistaken. This Court has often declined to apply *Chevron* deference when the government fails to invoke it. See Eskridge & Baer, The Continuum of Deference: Supreme Court Treatment of Agency Statutory Interpretations From *Chevron* to *Hamdan*, 96 Geo. L. J. 1083, 1121–1124 (2008) (collecting cases); Merrill, Judicial Deference to Executive Precedent, 101 Yale L. J. 969, 982–984 (1992) (same); see *BNSF R. Co. v. Loos*, 586 U. S. 310 (2019). Even when *Chevron* deference is sought, this Court has found it inappropriate where “the Executive seems of two minds” about the result it prefers. *Epic Systems Corp. v. Lewis*, 584 U. S. 497, 520 (2018). Nor is it a surprise that the government can lose the benefit of *Chevron* in situations like these and ours. If the justification for *Chevron* is that “‘policy choices’ should be left to Executive Branch officials ‘directly accountable to the people,’” *Epic Systems*, 584 U. S., at 520 (quoting *Chevron*, 467 U. S., at 865), then courts must equally respect the Executive's decision *not* to make policy choices in the interpretation of Congress's handiwork.

To make matters worse, the law before us carries the possibility of criminal sanctions. And, as the government itself may have

recognized in offering its disclaimer, whatever else one thinks about *Chevron*, it has no role to play when liberty is at stake. Under our Constitution, “[o]nly the people’s elected representatives in the legislature are authorized to ‘make an act a crime.’” *United States v. Davis*, 588 U. S. 445, 451 (2019) (quoting *United States v. Hudson*, 7 Cranch 32, 34 (1812)). Before courts may send people to prison, we owe them an independent determination that the law actually forbids their conduct. A “reasonable” prosecutor’s say-so is cold comfort in comparison. That’s why this Court has “never held that the Government’s reading of a criminal statute is entitled to any deference.” *United States v. Apel*, 571 U. S. 359, 369 (2014). Instead, we have emphasized, courts bear an “obligation” to determine independently what the law allows and forbids. *Abramski v. United States*, 573 U. S. 169, 191 (2014); see also 920 F. 3d, at 39–40 (opinion of Henderson, J.); *Esquivel-Quintana v. Lynch*, 810 F. 3d 1019, 1027–1032 (CA6 2016) (Sutton, J., concurring in part and dissenting in part). That obligation went unfulfilled here.

Chevron’s application in this case may be doubtful for other reasons too. The agency used to tell everyone that bump stocks don’t qualify as “machineguns.” Now it says the opposite. The law hasn’t changed, only an agency’s interpretation of it. And these days it sometimes seems agencies change their statutory interpretations almost as often as elections change administrations. How, in all this, can ordinary citizens be expected to keep up—required not only to conform their conduct to the fairest reading of the law they might expect from a neutral judge, but forced to guess whether the statute will be declared ambiguous; to guess again whether the agency’s initial interpretation of the law will be declared “reasonable”; and to guess *again* whether a later and opposing agency interpretation will *also* be held “reasonable”? And why should courts, charged with the independent and neutral interpretation of the laws Congress has enacted, defer to such bureaucratic pirouetting?

Despite these concerns, I agree with my colleagues that the interlocutory petition before us does not merit review. The errors apparent in this preliminary ruling might yet be corrected before final judgment. Further, other courts of appeals are actively considering challenges to the same regulation. Before deciding whether to weigh in, we would benefit from hearing their considered judgments—provided, of course, that they are not af-

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flicted with the same problems. But waiting should not be mistaken for lack of concern.

No. 19-7458. *MYERS v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 786 Fed. Appx. 161.

No. 19-7486. *LINDSAY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. JUSTICE BREYER took no part in the consideration or decision of this petition. Reported below: 931 F. 3d 852.

No. 19-7489. *DURAN v. DIAZ, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION*. C. A. 9th Cir. Certiorari before judgment denied.

Rehearing Denied

No. 19-6153. *NELSON v. BURT, WARDEN*, 589 U. S. 1107;

No. 19-6337. *BIRCH-MIN v. MIDDLESEX COUNTY BOARD OF SOCIAL SERVICES ET AL.*, 589 U. S. 1144;

No. 19-6457. *D. B. v. TEXAS DEPARTMENT OF FAMILY AND PROTECTIVE SERVICES*, 589 U. S. 1147;

No. 19-6470. *MARSHALL v. STEEH ET AL.*, 589 U. S. 1147; and

No. 19-6537. *EVERSON v. LANTZ ET AL.*, 589 U. S. 1149. Petitions for rehearing denied.

No. 18-9296. *IN RE DANNEWITZ*, 589 U. S. 915. Motion for leave to file petition for rehearing denied.

MARCH 5, 2020

Miscellaneous Order

No. 19A984. *WOODS v. STEWART, WARDEN, ET AL.* Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied.

Certiorari Denied

No. 19-7880 (19A976). *WOODS v. DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied. The order heretofore entered by JUSTICE THOMAS is vacated. Reported below: 951 F. 3d 1288.

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Miscellaneous Order

No. 19A906. ACTAVIS HOLDCO U. S., INC., ET AL. *v.* CONNECTICUT ET AL. D. C. E. D. Pa. Application for stay, presented to JUSTICE ALITO, and by him referred to the Court, denied. The order heretofore entered by JUSTICE ALITO is vacated.

MARCH 9, 2020

Certiorari Granted—Vacated and Remanded

No. 19–566. PIERSON *v.* UNITED STATES. C. A. 7th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019). Reported below: 925 F. 3d 913.

Miscellaneous Orders

No. 19M107. NATIONAL FOOTBALL LEAGUE ET AL. *v.* NINTH INNING, INC., ET AL. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 19M108. ANDERSON *v.* ROBITAILLE. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal denied. Motion for leave to proceed *in forma pauperis* with declaration of indigency under seal denied.

No. 19M109. APPLETON *v.* DLJ MORTGAGE CAPITAL, INC. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 19–292. TORRES *v.* MADRID ET AL. C. A. 10th Cir. [Certiorari granted, 589 U. S. 1126.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 19–431. LITTLE SISTERS OF THE POOR SAINTS PETER AND PAUL HOME *v.* PENNSYLVANIA ET AL.; and

No. 19–454. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. *v.* PENNSYLVANIA ET AL. C. A. 3d Cir. [Certiorari granted, 589 U. S. 1165.] Motion of petitioners in No. 19–454 to dispense with printing joint appendix granted.

No. 19–6516. VETETO *v.* GRIFFIN, JUDGE, CIRCUIT COURT OF ALABAMA, MONTGOMERY COUNTY, ET AL. C. A. 11th Cir. Mo-